Cooper & Quinn LLP

Pasadena, TX
Phone 832-555-2058

Settlement Demand

12/11/2023

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1484 - Demand for settlement

Dear Claims Representative:

Our firm represents Nathaniel Fleming in connection with the motor vehicle collision that occurred on 07/12/2023 at a signalized intersection. Our client was proceeding through the intersection on a green light when your insured failed to yield and struck the driver's side of our client's vehicle. The force of the impact spun the vehicle and caused it to strike the adjacent curb before coming to rest.

Our client was transported from the scene by ambulance and subsequently diagnosed with a cervical neck strain, along with muscle spasms and restricted range of motion. Treatment has included physical therapy, prescribed muscle relaxants, and ongoing chiropractic care. Our client has missed several days of work and continues to experience headaches and limited ability to perform routine household tasks.

The police report documents your insured's citation for failing to yield the right of way, and the independent witness statement supports our client's account of the signal. Liability is clear.

Based on the medical expenses incurred to date, lost wages, the ongoing nature of the treatment, and the pain and suffering our cilent has endured, we demand payment of $201,000.00 to resolve this claim. This offer will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice.

Expert review: Melanie Munoz, orthopedic surgeon

Sincerely,

Matthew Day
Cooper & Quinn LLP